**CONFIDENTIALITY AGREEMENT**

**Between**

**Auty Consultancy Ltd**

**And**

**T H I S A G R E E M E N T made the 09/02/2026 BETWEEN**

**Auty Consultancy Ltd & KAL EL Clothing**

**W H E R E A S it would be desirable for the parties to this Agreement to explore areas of mutual interest relating to an investment or acquisition of KAL EL Clothing, to discuss the establishment of a business relationship (“the Permitted Purpose”)**

**N O W I T I S H E R E B Y A G R E E D as follows:**

1. ## DEFINITIONS

"Confidential Information" means all information or data disclosed (whether in writing orally or by any other means) by one party to the other, including but not limited to any information relating to the disclosing Company or relating to any products, operations, processes, plans, inventions, product, information, know-how, design rights, trade secrets, software, market opportunities, customers and business affairs excluding Excluded Information

“Copies” means copies of Confidential Information including any document, electronic file, note, extract, analysis or any other way of representing or recording and recalling information which contains, reflects or is derived from Confidential Information.

“Excluded Information” means information that:

1. is or becomes public knowledge other than as a direct or indirect result of the information being disclosed in breach of this Agreement by the Recipient or anyone to whom the Recipient has disclosed the information;
2. the Recipient can show:

i) was in its possession or known to it by being in its use or being recorded in its files or computers or other recording media prior to receipt from the disclosing Company and was not previously acquired by the Recipient from the disclosing Company under an obligation of confidence, or

ii) to have been developed by or for the Recipient at any time independently of the information disclosed to it by the disclosing Company;

1. lawfully becomes available to the Recipient by a third party who has not breached directly or indirectly a contractual relationship with the disclosing Company;
2. the disclosing Company agrees in writing with the Recipient is not Confidential Information;

**2. RECIPIENT'S OBLIGATIONS**

- 1. The Confidential Information shall be kept secret by the Recipient who will use it solely for the Permitted Purpose to assess the business opportunity. The information shall at all times remain the property of the disclosing party.
  2. The Recipient undertakes:

2.2.1 not to disclose the Confidential Information to anyone or to make additional Copies of it unless this Agreement allows the Recipient to do so;

2.2.2 to use its reasonable endeavours to ensure that Copies are protected against theft or unauthorised access and that no-one receives Confidential Information from the Recipient unless authorised;

2.2.3 not to use the Confidential Information directly or indirectly for commercial or other purposes save as permitted in accordance with this Agreement and not to use the same for the purpose of guiding or conducting a search of any information, materials or sources whether or not available to the public for any purpose whatsoever.

1. **PERMITTED DISCLOSURE**
   1. The Recipient may disclose Confidential Information only to:

3.1.1 such officers and employees of the Recipient as are strictly necessary for the Permitted Purpose;

3.1.2 professional advisors or consultants engaged to advise the Recipient in connection with the Permitted Purpose;

3.1.3 people who the disclosing Company has agreed in writing may receive the information;

3.1.4 the extent permitted by Clause 4;

3.2 The Recipient will inform anyone to whom it discloses the Confidential Information pursuant to Clause 3.1 (Permitted Recipients) that it is confidential and procure that they comply with this Agreement (including Clause 7) as if they were the Recipient. The Recipient shall impose conditions of secrecy on Permitted Recipients similar to those imposed by this Agreement. Upon the disclosing Company's request in writing, the Recipient will procure that Permitted Recipients shall enter into a confidentiality agreement with the disclosing Company on terms equivalent to those contained in this Agreement.

3.3. The Recipient will be liable for any breach of this Agreement by any Permitted Recipient.

1. **FORCED DISCLOSURE**

The Recipient may disclose such Confidential Information as is necessary pursuant to a legal or regulatory requirement provided that it notifies the disclosing Company of the requirement and relevant Confidential Information as soon as the Recipient is aware of the same and in sufficient time to allow the disclosing Company to take such measures as may be available to limit the disclosure and preserve the confidentiality of such Confidential Information nevertheless required to be disclosed and further provided that the Recipient gives all reasonable assistance required by the disclosing Company in this respect.

**5. RETURN OF COPIES**

If the Company so requests in writing the Recipient shall immediately:

5.1 Return to the disclosing Company the Confidential Information and Copies.

5.2 Use all reasonable endeavours to permanently erase all emails and electronic documents containing Confidential Information from the Recipient's computer systems.

5.3 Confirm in writing that the Recipient has complied with the requirements of paragraphs 5.1 and 5.2 above.

5.4 The recipient shall be permitted to keep one copy of the disclosed information in a secure file, solely for the purposes of defending itself in the event of any dispute arising from this agreement.

**6. TIME**

The obligations contained in this Agreement (with the exception of those contained in Clause 7 below) will last for two years from the date of this agreement.

**7. NON-SOLICITATION**

7.1 For the duration of this Agreement and for a period of 12 months from termination of this Agreement ("the Specified Period") the Recipient shall not directly or indirectly solicit or entice away or endeavour to solicit or entice away from the disclosing company any person who was an employee or consultant of the disclosing company during the period of the discussions relating to the Permitted Purpose and who by reason of such employment or engagement is or may be likely to be in possession of any Confidential Information (whether or not such person would commit a breach of his contract of employment by reason of terminating such employment).

7.2 For the Specified Period the Recipient shall not directly or indirectly solicit any customer of the disclosing Company in competition with the disclosing Company except where in the 12 months before the date of this Agreement and during the discussions about the Permitted Purpose either the customer did not deal with the disclosing Company or the customer was already a customer of the Recipient.

**8. WARRANTY**

**Auty Consultancy Ltd warrants that they have no existing relationships with, or are investigating making any investments in any business producing or marketing the business operations of KAL EL Clothing based products for any purpose.**

## 9.GENERAL

- 1. The Confidential Information may not be accurate or complete. The disclosing Company will not be liable to the Recipient or anyone to whom the Recipient discloses the information if it is relied upon save that this Clause shall not operate to exclude liability for fraudulent misrepresentation
  2. The Recipient accepts that any breach of this Agreement could cause injury to the disclosing Company and that monetary damages would not be an adequate remedy. In the event of a breach or threatened breach by the Recipient, the disclosing Company shall be entitled to injunctive relief in any court of

competent jurisdiction and the Recipient shall reimburse the disclosing Company for any costs, claims, demands or liabilities arising out of a breach of this Agreement by the Recipient. Nothing contained in this Agreement shall be construed as prohibiting the disclosing Company from pursuing any other remedies available to it for breach or threatened breach.

3. No failure or delay by the disclosing Company in exercising any right, power or privilege under this Agreement shall operate as a waiver nor shall any single or partial exercise prejudice any further exercise of any right, power or privilege under this Agreement or otherwise.
4. If any provisions of this Agreement shall be found by any court or administrative body of competent jurisdiction to be invalid or unenforceable in whole or in part, such invalidity or unenforceability shall not affect the other part of that provision or the other provisions of this Agreement which shall remain in full force and effect.
5. Any inventions, designs, processes or other technology conceived, created or developed during the course of discussions entered into under this Agreement shall be owned by the disclosing Company if based upon or arising from the disclosing Company’s Confidential Information.
6. Nothing in the Agreement shall be construed as a grant of rights by one party to the other in any products arising from discussions nor as placing either party under any obligation to grant the other future rights in such products in a subsequent agreement.
7. The interpretation, construction and effect of this Agreement shall be governed and construed in all respects in accordance with the laws of England. Each party irrevocably submits to the non-exclusive jurisdiction of the courts of England.
8. This Agreement cannot be changed except by written agreement between the parties

---

**SIGNATURES**

Disclosing Party / Buyer:

**Adam Auty**

Auty Consultancy Ltd

Date: 09/02/2026

Receiving Party / Seller:

**Adam Auty**

Date: 09 February 2026

**Electronic Acceptance Record**
Accepted by: Adam Auty
Date & Time: 2026-02-09T23:49:04.580Z
IP Address: 10.82.4.31
This document was electronically accepted via the secure document portal.